

COMPLAINT AND REQUEST FOR INVESTIGATION

To: Federal Trade Commission Bureau of Consumer Protection Division of Advertising Practices 600 Pennsylvania Avenue NW, Washington DC 20580

From: Jay Puckett, Principal Security Researcher Obsidian Watch Group
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Re: Deceptive marketing of 7-hydroxymitragynine (7-OH) products as natural botanical supplements, in violation of Section 5 of the FTC Act

SUMMARY

We request that the Commission investigate the marketing of concentrated 7-hydroxymitragynine products, which are sold to consumers as natural botanical supplements while the federal government's own scientific assessment finds them to be synthetically produced by chemical conversion.

The sellers know. On at least one seller's own website, the product page advertises "botanical supplementation" while a separate help-center page on the same domain concedes the products "can be habit-forming" and that "long-term use may lead to addiction and withdrawal symptoms."

Obsidian Watch Group is an independent investigative organization. We have no financial interest in kratom, 7-OH, or any company named here, and no funding from any party. We are not seeking damages and represent no claimant.

1. THE PRODUCT

7-hydroxymitragynine is an opioid. FDA states it "demonstrates substantially greater mu-opioid receptor potency" than morphine and "produces respiratory depression, physical dependence, and withdrawal symptoms characteristic of classical opioids, such as morphine, fentanyl, oxycodone, and hydrocodone."

The specific product examined here, Limitless Black Edition 7-Hydroxymitragynine Tablets, is labeled at 50 mg of 7-OH per tablet, 500 mg per ten-count bottle, with a labeled serving size of one quarter tablet, that is 12.5 mg.

2. THE REPRESENTATION IS FALSE ON THE GOVERNMENT'S OWN FINDING

The products are marketed with the vocabulary of botanicals. From the captured product pages:

"Experience the ultimate in botanical supplementation with LIMITLESS BLACK EDITION 7-Hydroxymitragynine Tablets."

-- 7ohplus.com, captured 2026-08-27

sha256 784b9fa6fcf89b06020a738622879789fe1b7d6843e95428add286e9fddec6fc

"a powerful botanical extract" ... "masking the natural bitterness of alkaloids"

-- pureleafkratom.com, captured 2026-08-27

sha256 803bc090846b44983509e228c5e054640dbc61863fd3eb770c00f1f22a22e913

FDA's assessment, "7-Hydroxymitragynine (7-OH): An Assessment of the Scientific Data and Toxicological Concerns Around an Emerging Opioid Threat," states:

"The enhanced amount of 7-OH in these products is likely synthetically derived through oxidate chemical conversion of mitragynine isolates or kratom extracts. Given the trace amounts of 7-OH that are naturally present in kratom, direct extraction of 7-OH from plant material would simply be unfeasible economically."

The manufacturing route is not in dispute. It is patented. United States Patents 12,492,201 B1 and 12,466,830, both titled "Method of converting mitragynine to 7-hydroxymitragynine," describe oxidation processes using Fenton's Reagent and oxone monopersulfate yielding at least 95 percent purity.

The industry itself characterizes these products as synthetic when it suits a different purpose. Sheldon Bradshaw, formerly FDA Chief Counsel, testifying for the trade group Botanicals for Better Health and Wellness before Ohio legislators, described 7-OH as "a synthetic drug" produced by "bad actors" who expose alkaloids to "harsh, toxic agents."

A compound manufactured by performing a patented chemical oxidation on a purified isolate is not a botanical supplement, and the parties selling it are aware of that.

3. THE SELLERS DISCLOSE THE RISK WHERE BUYERS WILL NOT SEE IT

On 7ohplus.com, the product page carries the "botanical supplementation" language quoted above. A help-center entry on the same domain, under the heading "Is 7Oh safe?", states:

"While 7OH and kratom are often considered safe for healthy adults when used responsibly, it's essential to understand the potential risks. Kratom contains compounds that can be habit-forming. Long-term use may lead to addiction and withdrawal symptoms."

Both were captured from the same domain on the same day and are preserved with hashes. The seller possesses the material information and places it away from the point of purchase.

We submit that this is a material omission under Section 5. A reasonable consumer choosing among wellness products would consider a risk of addiction and withdrawal material to the decision, and would not expect to locate it in a help-center article.

4. DOSAGE PRESENTATION

The unit sold is a 50 mg tablet. The labeled serving is one quarter of that tablet, 12.5 mg. The product is dispensed, priced and consumed as tablets. Where a single unit contains four labeled servings of an opioid more potent than morphine, the Commission may wish to consider whether the serving-size presentation is likely to mislead.

5. FREE SAMPLE DISTRIBUTION

Independent reporting describes concentrated 7-OH being distributed as free samples to existing purchasers of leaf kratom, including persons in recovery from opioid use, with dependence following within weeks. We have not independently verified this practice and flag it as reported rather than established. If substantiated, a practice of

providing an opioid at no cost to a population in recovery, at the point of sale of a different product, warrants the Commission's attention on its own.

6. CONSUMER HARM IN THE GOVERNMENT'S OWN RECORDS

FDA's CFSAN Adverse Event Reporting System contains 879 reports naming kratom products. CAERS is voluntary, unverified, and does not establish causation. With that stated: 276 reports record a death, 239 a hospitalization, 135 a disability. The most frequently reported reaction after death is dependence, at 256 reports, followed by withdrawal syndrome at 98.

Four reports name Limitless 7-OH products specifically, two of them Black Edition. Recorded outcomes include three "Other Serious or Important Medical Event" and one Disability. Reported reactions include withdrawal syndrome, restless legs syndrome, hyperhidrosis, insomnia, anxiety and dehydration. Ages reported: 23, 37, 56, 69.

We note that FDA issued warning letters to seven firms marketing 7-OH products on 15 July 2025. Limitless was not among them.

7. WHO THE HARM FALLS ON

The Commission may wish to note where the removals land.

A purchaser who knows the product is an opioid, knows the serving size, has a physician, can afford treatment and has stable housing can extricate himself, with difficulty. We have documented one such case: three weeks, 6,000 mg, and a prescribed course of buprenorphine.

A purchaser who has been told the product is botanical supplementation, who has not seen the habit-forming disclosure because it sits on a different page, who has no available appointment and no coverage, and who does not recognise opioid withdrawal when it begins, has one immediately available intervention. It is to buy more of the product.

Every element of that difference is a marketing decision rather than a pharmacological one. The compound is the same. What changes is what the buyer was told, and where.

8. WHO IS ACTUALLY BEING SOLD TO

The Commission may wish to note the composition of the population these products reach.

In the International ADHD in Substance Use Disorder Prevalence study, a structured-interview cohort of 1,274 treatment-seeking substance use disorder patients aged 18 to 65, childhood trauma exposure was present in 53.5 percent of patients (Addictive Behaviors, DOI 10.1016/j.addbeh.2016.10.016). Comorbid adult ADHD was present in 14.1 percent, against roughly 2.5 to 5 percent in the adult general population, and ADHD prevalence was 19.4 percent among those with childhood trauma against 8.5 percent without.

This is not a marginal subgroup. A majority of the people who end up in treatment for a substance use disorder were traumatised as children.

We raise it for one reason. These products are sold beside the register, at gas stations and smoke shops, without age verification in many locations, described as botanical supplementation, with the seller's own admission of habit-forming potential placed on a page the buyer does not see. The population most likely to be reached by that presentation is disproportionately made up of people who were made vulnerable long before they walked in.

A representation that would mislead an ordinary consumer is a more serious matter when the foreseeable audience is this one.

PRECEDENT IN THIS SECTOR

The theory has already succeeded once. In re Botanic Tonics Litigation, No. 3:23-cv-01460-VC (N.D. Cal.), settled for \$8,750,000 on allegations that a kratom product was marketed without disclosing its kratom content or its addictive potential.

REQUESTED ACTION

1. Investigate whether describing chemically converted 7-hydroxymitragynine as "botanical supplementation," "botanical extract" or equivalent constitutes a deceptive representation under Section 5.
2. Investigate whether placing addiction and withdrawal disclosures outside the point of purchase, while the product page carries wellness framing, constitutes a material omission.
3. Investigate the reported practice of distributing free 7-OH samples to purchasers of other kratom products.
4. Consider coordination with FDA, which has issued warning letters in this category, and with state attorneys general. The Georgia Attorney General issued a consumer alert on 13 November 2025 describing these products as "Dangerous Synthetic Opioids Flooding Gas Stations."

EVIDENCE AVAILABLE

Captured web pages with SHA-256 hashes and capture timestamps, the FDA scientific assessment, the two patents, adverse event extracts, and the underlying case file are available on request and published at: github.com/jpuckett11/ObsidianGroup_CaseSevenfold

Respectfully submitted,

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